

Court No. - 21

Case :- WRIT - C No. - 8091 of 2024

Petitioner :- Ram Kumar @ Virat Kaharwar @ Gullu

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Sr. Advocate

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.,Krishna Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. None present for the petitioner even in revised call.
2. Brief Holder of Sri Baleshwar Chaturvedi, learned counsel for respondent-Electricity Department, is present.
3. Put up as fresh on 21.03.2024.

Order Date :- 13.3.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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1. The petitioner has challenged the notice of provisional assessment dated 16.08.2023 issued by respondent No. 4 in a case of alleged theft of electricity.
2. Learned counsel for the respondent Electricity Department submits that so far order of final assessment has not been passed and in case, any objection is filed by the petitioner against the notice of provisional assessment, it will be considered while passing order of final assessment.
3. Accordingly, we **dispose of** the instant petition by providing 15 days' further time to the petitioner to file objection, if any, against the notice of provisional assessment and in which event, respondent No. 4 will proceed to decide the same in accordance with law. The procedure prescribed under clause 6.8 of Uttar Pradesh Electricity Supply Code, 2005 shall be duly followed.

Order Date :- 21.3.2024

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(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)